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NYAGAH B. KITHINJI & CO.
ADVOCATES
ADVOCATES OF THE HIGH COURT OF KENYA

Upper Hill Financial District, Mbaruk Road off Ngong
Road

REPUBLIC OF KENYA

IN THE MATTER OF THE ARBITRATION ACT 1995

AND

14.01.2026 - BILL OF COSTS - DHANYA V SUNIL

BETWEEN

IMPORTED CLIENT

CLAIMANT

AND

RESPONDENT NAME

RESPONDENT

[BEFORE ARCH. NEKOYE MASIBILI, MCIARB]

CLAIMANT'S PARTY AND PARTY BILL OF COSTS

Pursuant to the Advocates (Remuneration) (Amendment) Order 2014 - Imported from Excel

DATE	ITEM NO.	PARTICI SERVICI RENDER
REPUBLIC OF KENYA IN THE MATTER OF THE ARBITRATIO ACT 1995 AND IN THE MATTER OF AN ARBITRATION ON THE DISPUTE OVER THE CONTRACT FOR THE CONSTRUCTION OF A RESIDENTIAL HOUSE AT MUTHAIGA, NAIROBI BETWEEN DHANYA CONSTRUCTION KENYA LIMITED.....CLAIMANT AND MR. SUNIL SHAH.....RESPONDENT [BEFORE ARCH. NEKOYE MASIBILI, MCIARB]		
CLAIMANT'S PARTY AND PARTY BILL OF COSTS Pursuant to the Advocates (Remuneration) (Amendment) Order 2014 - Schedule 6		
DATE+A3:E14	ITEM NO.	PARTIC SERVIC RENDEI
45078	A	Instruct

	i	Prosecu Claimar against Respon
		To rece instruct on beha Claimar institute against Respon before i Tribuna
		a. A dec that the ought to issued i certific release moiety retentio Februar
		b. A dec that the the 2nd retentio on 28th 2021
		c. An or Respon pay the the surr 3,000,0 being th Moiety Retentic
		d. An or Respon pay the interest 3,000,0 the Cer of Keny rates fr March 2 paymer The acc interest date of Stateme Claim is 1,002,2

		e. An or Respon pay the the surr 447,760 the quo amount floor re
		f. An or Respon pay the interest 447,760 Central Kenya () from 28/01/2021 ur paymer The acc interest date of Stateme Claim is 139,627
		g. An or Respon pay the Arbitrat the Clai costs in of this /
		Conside value o subject Kshs. 5 - which amount on 28/01/2021 compris principa (Kshs. 2,048,200) plus int 14/01/2021 2,048,200
		Getting for trial
45148	ii	Claimar Defenc the Res Counter

		To receive instruct on behalf Claimant defend Claimant the Res Counter Kshs. 6,222,8 broken follows:
		a) The (Claim b dismiss
		b) An a Kshs. 3,522,8 together interest rates be the Res from the August payer
		c) A der that the ought to issued ; certific; Clause contrac the Res damage delay in comple contrac least 9 ; issued ; order fi Archite the cert under C of the c made.

		d) An order directing Claimant to respond to the damage delay in completing the amount of Kshs. 2,700,000 interest on the principal B of Kenya from 14th August 2014 until settlement in full.
		e) The court awarded the claimant counter damages of Kshs. 2,700,000 interest on the principal B of Kenya from 14th August 2014 until settlement in full.
		Getting ready for trial
	B	Taking into consideration the following
	i.	Drawing up the following documents
45127	1	Statement of Claim ('S.O.C')
45127	2	Claimant's Documents (folios)
45162	3	Reply to and Defence to Counterclaim (folios)
45211	4	Claimant's Issues for determination (folios)
45224	5	Witness Statement of Barnabas (folios)

45303	6	Applica leave to Supplier Docume folios)
45309	7	Claimar respons Respon ground: opposit Applica Supplier docume folios)
45309	8	List and authorit respons ground: opposit
45491	9	Claimar Submis the Res Applica Site Vis
45588	10	Claimar Submis (254.7 f
45588	11	Claimar Authori folios)
45706	12	Claimar Replyin Submis folios)
45706	13	Claimar Authori folios)
	C	Writing Followin necess: and Em Corresp
45112	14	Letter n for Exte Time to Stateme Claim (:

45112	15	Email for the letter 05/07/2 request Extension
45120	16	Email request for further Extension until 20 to file the Statement Claim
45127	17	Email filed serving Statement Claim dated 20/07/2 (folio)
45132	18	Email attached to the Claim Bundle Document marked (folio)
45162	19	Email filed serving to Defence Defence Counter (folio)
45196	20	Email to Respond the agreement for date (1 folio)
45182	21	Email on availability proceeding meeting held on 13/10/2 (folio)
45195	22	Email for the issue determine the Res for conclusion (1 folio)

45211	23	Email re to the Respon draft is: determi shared 09/10/2 folio)
45211	24	Email fil serving Claimar for dete (1 folio)
45222	25	Email re for Exte Time to Claimar Witness Stateme Combin Pleadin (1 folio)
45224	26	Email fil serving Witness Stateme Barnab: and the Claimar Combin (1 folio)
45230	27	Email c: availabi propos: to be h: 01/11/20 folio)
45265	28	Email re to the Respon request allowed combin out of ti folio)
45303	29	Email fil serving Applica leave to supplier docume folio)

45309	30	Email fil serving respons ground: opposit as the a with req applicat leave to supplier docume folio)
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45579	41	Email re for furtl Extensi to file th Claimar Submis folio)
45588	42	Email fil serving Claimar Submis folio)
45616	43	Email re to the Respon request extensi to file submis: folio)
45636	44	Email re for leav rejoinde submis: folio)
45698	45	Email re for exte time to replying submis: folio)
45700	46	Email re for furtl Extensi to file th Claimar Replyin Submis folio)

45706	47	Email fil serving Claimar Replyin Submis folio)
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45162	64	Email acknow receipt Claimar to Defe Defence Counter folio)
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45677	95	Email re to the C request rejoinde submis: folio)
45713	96	Email c on the C Replyin Submis folio)
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45765	98	Email c receipt Arbitrat update release award (
45943	99	Email in to the T letter of 13/10/2 folio)

	(b)	From th Arbitrat
45093	100	Order fr Directio (23 folio
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45093	102	Email fc Order fr Directio and the Addenc thereto
45113	103	Email re for com the Clai request Extensi made o 05/07/2 folio)
45120	104	Email oi the Clai stateme (1 folio)
45121	105	Order fr Directio (4 folio:
45121	106	Email fc Order fr Directio folio)
45156	107	Email acknow receipt Claimar and Doi folio)
45182	108	Order fr Directio (3 folio:
45182	109	Email fc Order fr Directio folio)

45196	110	Email in the filing parties' determination (1 folio)
45208	111	Email for inquiry in filing of parties' determination (1 folio)
45215	112	Order for Direction (5 folios)
45215	113	Engage Agreement Stenographic service
45215	114	Email for Order for Direction and Agreement for engagement of a stenographer (1 folio)
45222	115	Email regarding Claimant request for extension made on 23/10/2020 (1 folio)
45229	116	Email acknowledging receipt of Claimant's Combined Document witness (1 folio)
45230	117	Email regarding virtual hearing on 1/11/2020 regarding address of Respondent concerning its email on 31/10/2020 (1 folio)

45231	118	Email se invitatic schedu meeting
45239	119	Email oi of the Respon Witness Stateme
45243	120	Email acknow receipt Respon Witness Stateme
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45303	122	Email fc a link fc hearing 15/01/20 folio)
45306	123	Email in to the C request rejoinde submis: folio)
45310	124	Email acknow receipt docume respect Applica leave to supplier docume folio)

45320	125	Order for Direction which contains Ruling on Claimant's Application to leave to supply documents (folios)
45320	126	Email for the Order Direction (folio)
45320	127	Fee Notice (folios) and Email at the said (1 folio)
45341	128	Email discussing potential of interest (folios)
45345	129	Email re the issue potential of interest
45346	130	Letter dated 24/02/2017 (folios)
45346	131	Email for a letter dated 24/02/2017 (folio)
45357	132	Email for the age hearing on 06/08/03/2017 (folio)
45357	133	Hearing No. 2 (folios)
45359	134	Email regarding request for rescheduling hearing (1 folio)

45361	135	Confirm letter dated 10/03/2024 (2 folios)
45361	136	Email re the confirm letter (1 folio)
45432	137	Email for the transcription of the hearing of 8/3/2024 (2 folios)
45447	138	Hearing No. 3 (2 folios)
45448	139	Email for hearing No. 3 (1 folio)
06/06/2024	140	Email for a link for hearing of 07/06/2024 (1 folio)
45450	141	Order for Directio (4 folios)
45450	142	Email for Order for Directio (1 folio)
45474	143	Order for Directio (6 folios)
45474	144	Email for Order for Directio (1 folio)
45498	145	Email acknowledging receipt of Submis (1 folio)
45503	146	Email w to the p site visi
45516	147	Order for Directio (9 folios)

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45706	183	Email g Claimar request extensi to file R Submis folio)
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02/10/2025 - 10/10/2025	196	Corresp on remi withhol folios)
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	F	Followin Attenda
45091	218	Prelimir Meeting (15mins)
45091	219	Procedi Meeting
45177	220	Procedi Meeting
45212	221	Procedi Meeting
45231	222	Procedi Meeting
45357	223	Hearing
45359	224	Hearing
45450	225	Hearing (Day)
45457	226	Hearing (Day)
	G	Further regard t
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		ii. The t of the s matter l Kshs. 11,271,0
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	L	Grand Total
DATED at NAIROBI this.....day of.....2026		
		NYAGA KITHIN, ADVOC
		ADVOC THE CL
		DRAWN BY:
		Nyagah & Co. A
		#205 M Road, C Drive
		Golf Co Estate
		P.O Box 00100
		NAIROBI
		info@nl advoca nbkithir advoca
		TO BE S UPON:
		Owiti O Ragot A
		4th Ave Towers
		4th Ngc Avenue
		P. O. Bc 00100
		NAIROBI
		info@or

DATED at NAIROBI this _____ day of _____ 2026

NYAGAH B. KITHINJI & CO. ADVOCATES

ADVOCATES FOR THE CLAIMANT

DRAWN & FILED BY:

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Advocates**

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TO BE SERVED UPON:

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